

25CHCV01961 25CHCV01961

County: los-angeles

Division: Civil Law and Motion

Department: F46

Hearing date: 2026-09-18

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MOTION FOR POST-JUDGMENT ENFORCEMENT REGARDING ATTORNEYS' FEES AND COSTS; OSC RE: DISMISSAL (SETTLEMENT)

Motion filed on June 18, 2026.

MOVING PARTY: Plaintiffs Ty Schisler and Sekar Wangi.

RESPONDING PARTY: Defendants Tovar Homeowners Association and National Property Management Group, Inc.

NOTICE: Ok.

RELIEF REQUESTED: Plaintiffs request \$37,194.80 in attorneys' fees and costs.

RULING: Continued to October 16, 2026, at 8:30 a.m. in Department F-46. The OSC re: Dismissal (Settlement) is continued to the same date.

BACKGROUND/DISCUSSION

"The prevailing party determination is to be made only upon

final resolution of the contract claims and only by 'a comparison of the extent to which each party ha[s] succeeded and failed to succeed in its contentions.'" (Hsu v. Abbata (1995) 9 Cal.4th 863, 876.) "Since all substantive issues in the case, except for the award of attorney fees, have been resolved by the settlement agreement, the trial court could determine the prevailing party, or it could exercise its discretion under section 1717 and decide that there was no prevailing party." (Jackson v. Homeowners Assn. Monte Vista Estates-East (2001) 93 Cal.App.4th 773, 786.)

Here, to determine prevailing-party status, the record does not sufficiently establish whether the obligations under the Settlement Agreement have been fully performed or otherwise resolved. The billing records also require clarification.

By September 30, 2026, Plaintiffs shall file a supplemental brief, not to exceed five pages, addressing whether the obligations under the Settlement Agreement have been fully performed or otherwise resolved, identifying any obligation that remains outstanding or disputed, whether further enforcement relief is sought, and whether dismissal is now due. Plaintiffs shall concurrently file a revised fee schedule identifying each timekeeper, position, rate, hours, task, and amount claimed, and separating pre-execution work, settlement administration, enforcement work, OSC work, and the present fee motion. Mixed entries shall be apportioned or explained.

Defendants may file a supplemental response, not to exceed five pages, by October 7, 2026.

Plaintiffs may file a reply, not to exceed three pages, by October 13, 2026.